

State of California

BUSINESS AND PROFESSIONS CODE

Section 22757.1

22757.1. As used in this chapter:

(a) “Artificial intelligence” or “AI” means an engineered or machine-based system that varies in its level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives how to generate outputs that can influence physical or virtual environments.

(b) “Covered provider” means a person that creates, codes, or otherwise produces a generative artificial intelligence system that has over 1,000,000 monthly visitors or users and is publicly accessible within the geographic boundaries of the state.

(c) “Generative artificial intelligence system” or “GenAI system” means an artificial intelligence that can generate derived synthetic content, including text, images, video, and audio, that emulates the structure and characteristics of the system’s training data.

(d) “Latent” means present but not manifest.

(e) “Manifest” means easily perceived, understood, or recognized by a natural person.

(f) “Metadata” means structural or descriptive information about data.

(g) “Personal information” has the same meaning as defined in Section 1798.140 of the Civil Code.

(h) “Personal provenance data” means provenance data that contains either of the following:

(1) Personal information.

(2) Unique device, system, or service information that is reasonably capable of being associated with a particular user.

(i) “Provenance data” means data that is embedded into digital content, or that is included in the digital content’s metadata, for the purpose of verifying the digital content’s authenticity, origin, or history of modification.

(j) “System provenance data” means provenance data that is not reasonably capable of being associated with a particular user and that contains either of the following:

(1) Information regarding the type of device, system, or service that was used to generate a piece of digital content.

(2) Information related to content authenticity.

(Added by Stats. 2024, Ch. 291, Sec. 1. (SB 942) Effective January 1, 2025. Operative January 1, 2026, pursuant to Section 22757.6.)